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COMMERFORD INSPECTION, INC. v. HEATHER CHRISTENSEN

CASE NO.: 25NWCV01393

HEARING: Tuesday, July 14, 2026, at 9:30 AM

Cross-Complainant HEATHER CHRISTENSEN's Demurrer to
Cross-Defendants' Answer to the Second Amended Cross-Complaint is OVERRULED.

Moving party to give notice.

Background

On April 21, 2025, Plaintiff COMMERFORD INSPECTION, INC.
("Plaintiff") filed this action against Defendants HEATHER CHRISTENSEN; HLS
INSPECTIONS; and DOES 1 to 25, inclusive.

On May 21, 2025, Cross-Complainant HEATHER CHRISTENSEN
("Cross Complainant") filed a Cross-Complaint against Cross-Defendants DEBRA A.
COMMERFORD; COMMERFORD INSPECTIONS, INC; and DOES 1 to 5, inclusive
("Cross-Defendants").

On January 28, 2026, Cross-Complainant filed the operative
Second Amended Cross-Complaint ("SACC").

The SACC alleges the following causes of action:

(1) Minimum Wage Violation;

(2) Failure to Pay Overtime
Wages;

(3) Failure to Provide Meal and
Rest Breaks;

(4) Failure to Pay for All
Hours Worked;

(5) Failure to Indemnify for
Business Expenses;

(6) Failure to Pay Final Wages
At Termination;

(7) Failure to Provide Accurate
Itemized Wage Statements;

(8) Failure to Provide Paid
Sick Leave;

(9) Constructive Wrongful
Termination in Violation of Public Policy; and

(10) Unfair Competition

On February 3, 2026, Cross-Complainant filed the instant
Demurrer arguing that Cross-Defendants' assertive affirmative defenses fail to
allege ultimate facts.

Meet and Confer

CCP §430.41(a) states that, before filing a demurrer, the
Moving Party must engage in a specified meet and confer process with the party
who filed the pleading at issue for the purpose of determining whether an
agreement can be reached as to the filing of an amended pleading that would
resolve the objections to be raised in the demurrer/motion to strike. "[T]he

demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP §430.41(a); see also CCP §435.5(a) regarding motions to strike.) A declaration setting forth such meet and confer efforts must accompany the demurrer and/or motion to strike. (CCP §§ 430.41(a)(3); 435.5(a).)

Here, Cross-Defendants argue that Cross-Complainant did not properly meet and confer before filing her Demurrer. However, in the interest of judicial efficiency, the Court will rule on the merits. Indeed, an insufficient meet and confer process shall not be grounds to sustain or overrule a demurrer. (CCP §430.31(4).)

Legal Standard

“A party against whom an answer has been filed may object, by demurrer as provided in Section 430.30, to the answer upon any one or more of the following grounds: (a) The answer does not state facts sufficient to constitute a defense. (b) The answer is uncertain. As used in this subdivision, ‘uncertain’ includes ambiguous and unintelligible. (c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral.” (Code Civ. Proc. § 430.20.) Every affirmative defense “shall be separately stated, and the several defenses shall refer to the causes of action which they are intended to answer, in a manner by which they may be intelligibly distinguished.” (Code Civ. Proc. § 431.30, subd. (g).) “If the complaint is verified...the denial of the allegations shall be made positively or according to the information and belief of the defendant.” (Code Civ. Proc. § 431.30, subd. (d).)

“Demurring to an answer is a commonly recognized practice.

Unlike the usual general demurrer to a complaint the inquiry is not into the statement of a cause of action. Instead, it is whether the answer raises a defense to the plaintiff’s stated cause of action. A general demurrer raises the objection that the answer does not state facts sufficient to constitute a defense” (Timberidge Enterprises, Inc. v. City of Santa Rosa (1978) 86 Cal.App.3d 873, 879-880 [internal citations and quotations omitted].) Generally, defendants must allege facts in support of affirmative defenses. (FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 384 [affirmative defenses “proffered in the form of terse legal conclusions, rather than as facts

'averred as carefully and with as much detail as the facts which constitute the cause of action and are alleged in the complaint'" are not well pled and cannot survive a demurrer[.].)

Discussion

Cross-Complainant contends Cross-Defendants' affirmative defenses are devoid of ultimate facts.

While there are no evidentiary facts alleged in the Answer, the cardinal rule of pleading is that only the ultimate facts need be alleged. (*Semole v. Sansoucie* (1972) 28 Cal.App.3d 714, 719.) Furthermore, the " 'distinction between conclusions of law and ultimate facts is not at all clear and involves at most a matter of degree. [Citations.] For example, the courts have permitted allegations which obviously included conclusions of law and have termed them "ultimate facts" or "conclusions of fact." ' ' " (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.)

Further, the sufficiency of an answer depends on the complaint to which it purports to answer. (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 733.) Therefore, the answer does not stand alone and is not unsupported by factual allegations as Cross-Complainant contends; rather it is read with reference to the facts alleged in the Cross-Complainant

Moreover, "if one of the defenses or counterclaims is free from the objections urged by demurrer, then a demurrer to the entire answer must be overruled." (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 734.)

In this case, Cross-Defendants assert a statute of limitations defense, for which "it is not necessary to state the facts showing the defense." (CCP § 458.) Indeed, in pleading the Statute of Limitations, it is not necessary to state the facts showing the defense, but it may be stated generally that the cause of action is barred by the provisions of a particular section. (Code Civ. Proc. § 458.)

Thus, the Court overrules the demurrer on this ground.

Further, the Court agrees with Cross-Defendants that Cross-Complainant can propound Form Interrogatory No. 15.1 to find out which facts, documents and witnesses support each affirmative defense.

Conclusion

Cross-Complainant's Demurrer is OVERRULED.